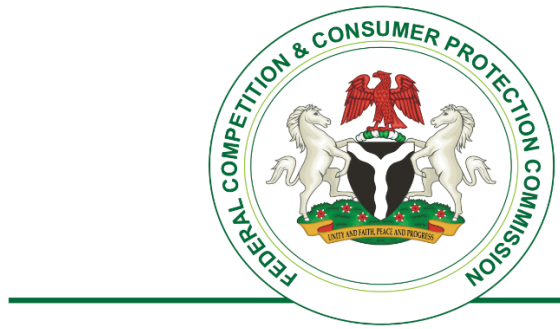


FCCPC

FEDERAL COMPETITION AND CONSUMER PROTECTION COMMISSION

SALES PROMOTION REGULATIONS, 2026

In exercise of the powers conferred by Sections 17, 18 and 163 of the Federal Competition and Consumer Protection Act, 2018, and to protect consumers and ensure fair conduct of promotional sales activities, the Federal Competition and Consumer Protection Commission hereby makes the following Regulations:

PART I—SCOPE OF THE REGULATION

(Application and Scope)

1. Subject to the provisions of the Act, these Regulations apply to all undertakings and all promotional activities in Nigeria, in all industries and sectors of the economy, lotteries, mobile applications (Apps), social media, e-commerce and all digital platforms.

2. These Regulations apply to any sales promotion offered to consumers within Nigeria or having effect within Nigeria, regardless of where the promoter is located, and to any person engaged in the production, supply or advertisement of goods or services in connection with such promotions.

3. Promotions that constitute lotteries under the National Lottery Act, 2005 shall in addition comply with that Act, and the promoter shall seek the approval of the National Lottery Regulatory Commission; nothing in these Regulations shall exempt the promoter from obtaining any lottery licence or permit required by law.

4. These Regulations shall apply to all sales promotions conducted or disseminated through digital platforms, including but not limited to websites, mobile applications, social media networks, e-commerce platforms, and other online channels accessible to consumers within and have effect the Federal Republic of Nigeria.

PART II—REGISTRATION AND APPROVAL PROCEDURES

(Requirement to register)

4. Notwithstanding Regulation (3), no undertaking shall organize or conduct a sales promotion without first registering the promotion with the Commission. A promoter shall register each sales promotion in

respect of which it is responsible, prior to any public announcement or launch of the promotion.

(Application for Registration)

5. (1) An application for registration of a sales promotion shall be made in the prescribed form (First Schedule) and shall be submitted to the Commission together with the prescribed fee (Third Schedule).

(2) The application shall include full details of the promotion, including:

a. the name and address of the promoter;

b. the nature and duration of the promotion;

c. a list of all prizes (with retail value); the mechanism of entry and selection of winners;

d. eligibility criteria for participants;

e. the date, time and venue of any draw;

f. and evidence of any required security or guarantee for prize fulfillment.

(3) The Commission may require any additional information it considers necessary for review of the application, including marketing materials, advertising copies, and copies of the proposed rules and terms and conditions of the promotion.

(4) The promoter shall pay the fees set out in the Third Schedule; the Commission may refuse to accept an application until the prescribed fee is paid.

(5) Upon receipt of a complete application and payment of the prescribed fee, the Commission shall acknowledge receipt of same within five (5) working days.

(6) The Commission shall consider and determine the application for registration of a sales promotion within twenty-one (21) working days of acknowledgment, provided all necessary information and documentation have been submitted.

(7) Where additional information is required, the period specified in sub-regulation (6) shall be suspended until such information is received.

(8) Where the Commission fails to communicate its decision within

the stipulated period, the applicant may, by written notice, request an update on the status of the application.

(Threshold Exemptions and Fast-Track Registration)

(9) Notwithstanding the provisions of these Regulations, the Commission may prescribe a threshold exemption for low-value or small-scale sales promotions not exceeding a total prize value of ₦500,000 (Five Hundred Thousand Naira) or such other amount as the Commission may determine from time to time.

(10) Promotions falling within the threshold specified in sub-regulation (1) shall be subject to a simplified or fast-track notification process and shall be exempted from payment of registration fees, provided that the promoter submits every detail of the promotion to the Commission for record and monitoring purposes.

(11) The exemption or fast-track process under this Regulation shall not absolve a promoter from compliance with the provisions of these Regulations relating to transparency, fairness, consumer protection, and post-promotion obligations.

(Promoter's Assurance)

6. (1) Every application for registration shall be accompanied by an irrevocable written assurance (in the prescribed form) by the promoter that:

   a. the promotion will be conducted in accordance with the Act, these Regulations, the applicable advertising and marketing code, and all other relevant laws and regulations;

   b. all promotional materials and communications will be true, accurate and not misleading;

   c. the prizes will be awarded as advertised and within the time specified;

   d. the promotion will be conducted in a fair, transparent and efficient manner, without any form of discrimination or exploitation, and that participants will not suffer undue disappointment (in line with best practices on promotional fairness);

   e. adequate measures will be taken to ensure health, safety and suitability of any promotional item, sample or prize given; and

   f. personal data collected from participants will be handled in compliance with Nigeria's data protection laws and used solely

for the purpose of the promotion.

(2) The undertaking shall bind the promoter to the Commission for the period during which the promotion is conducted and any extension thereof.

(Grant and Conditions of Registration)

7. (1) Upon receipt of a complete application, the Commission shall review the submission and may, if satisfied that the promotion meets the requirements of the Act and these Regulations, issue a Sales Promotion Registration Certificate (in the prescribed form) to the promoter.

(2) The certificate shall state:

a. the name and address of the promoter;

b. the title of the promotion;

c. the expiration date/applicable duration;

d. any special conditions of registration; and

e. the registration number.

(3) The Commission may impose such conditions and limitations on the certificate as it deems necessary, such as requiring the promoter to maintain a prize fund or to publish the terms and conditions in a specified manner.

(4) The Commission may refuse to register a promotion if the application or undertaking is false, incomplete or likely to mislead, or if the Commission considers the promotion would contravene the Act or any law (in which case the promoter shall be informed of the reasons).

(Duration and Renewal of Certificate)

8. (1) A Sales Promotion Registration Certificate shall remain in force

for the period specified therein, which shall not exceed one year from the date of issue, or the duration of the promotion, whichever is shorter.

(2) If a promoter wishes to extend or renew a registered promotion beyond the original expiry date, the promoter shall apply for renewal at least 30 days before expiry.

(3) The renewal application shall include updated information and justification for extension; the Commission may grant a renewal (with or without additional conditions) if it considers it appropriate.

(Suspension and Revocation of Registration)

9. (1) The Commission may suspend or revoke a Sales Promotion Registration Certificate (after giving the promoter a reasonable amount of information/ communication to be heard) if:

    a. the promoter has contravened the Act, these Regulations or any condition of registration;

    b. the promoter has knowingly provided false or misleading information in the application or accompanying documents;

    c. the promoter fails to provide a prize or part of a prize to an entitled participant without reasonable excuse; or

    d. the continuation of the promotion would be prejudicial to consumer interests or public policy.

(2) Suspension or revocation shall not relieve the promoter of liability for any violation that occurred while the Registration Certificate was valid.

(3) If a Registration Certificate is suspended or revoked, the promoter shall immediately cease all advertising of the promotion, cease collection of entries, and refund any participation fees as may be directed by the Commission.

PART III – DIGITAL AND ONLINE PROMOTIONS

(Scope of Application)

10. Digital and online promotions shall apply to both domestic and foreign entities whose promotional activities target Nigerian consumers or are accessible within Nigeria.

(Prohibition of Misleading Digital Promotion)

11. A promoter shall not, whether by act or omission, design, publish, or disseminate any online sales promotion that is false, misleading, deceptive, or likely to create a false impression as to:

    a. the nature, price, availability, or duration of an offer;
    b. the existence of a discount or promotional benefit; or
    c. the terms and conditions applicable to participation in the promotion

12. Any representation or claim made through digital means shall be capable of substantiation by the promoter at the request of the Commission.

(Transparency and Disclosure Requirements)

13. All material information relating to a digital sales promotion, including its duration, eligibility criteria, redemption process, and applicable conditions, shall be clearly and prominently disclosed to consumers prior to participation.

14. Disclosures shall be presented in a legible, unambiguous, and accessible format and shall not be obscured by hyperlinks, pop-ups, or any other digital design feature.

15. Influencers, affiliates, or endorsers participating in any promotional campaign shall **fully disclose** their paid or sponsored relationship with the promoter in accordance with these Regulations and Commission's guidelines.

(Algorithmic and Targeted Promotions)

16. Where a promoter employs algorithmic tools, artificial intelligence, or automated decision-making systems in determining promotional offers, prices, or consumer targeting, such systems shall be designed and operated in a transparent and non-discriminatory manner.

17. A promoter shall not use algorithmic mechanisms to manipulate consumer behaviour, exploit consumer vulnerabilities, or misrepresent the comparative value of an offer.

18. The Commission may require disclosure of the criteria or logic underlying such algorithmic promotions where necessary to assess compliance with these Regulations.

Liability

19. A promoter, digital platform, or intermediary that hosts, facilitates, or disseminates a misleading or non-compliant online promotion shall be jointly and severally liable for any breach of these Regulations.

20. The Commission shall impose administrative penalties, require corrective advertising, or suspend the operation of any digital promotion found to contravene the provisions of this Part.

PART IV – INFLUENCER AND AFFILIATE MARKETING

Scope of Application

21. All undertakings that promote, endorse, or advertise any product, service, or brand to consumers in Nigeria through digital, broadcast, or print media under a paid, sponsored, or affiliated arrangement shall

register their sales promotion with the Commission.

Disclosure Obligations

22. Every influencer, affiliate, or brand ambassador engaged in a paid partnership or sponsored promotion shall clearly and conspicuously disclose the existence and nature of such relationship to the audience at the time of communication.

23. Disclosures shall be—
    a. unambiguous, visible, and in plain language;
    b. placed in a position and format that ensures immediate awareness by the consumer; and
    c. repeated as necessary in long-form or recurring content to ensure transparency.
24. The use of vague or misleading terms such as “collaboration” or “ambassador” without explicit reference to a paid or sponsored relationship shall not satisfy the disclosure requirement under these Regulations.

Prohibition of False or Misleading Representations

25. No influencer, affiliate, or brand ambassador shall make any claim, representation, or endorsement that is false, misleading, exaggerated, or not capable of substantiation.
26. All promotional statements, testimonials, or endorsements shall reflect honest and genuine opinions or experiences of the influencer and shall be verifiable by the promoter or brand owner.
27. Any omission or concealment of material facts that may mislead or deceive consumers shall constitute a breach of these Regulations.

Liability and Accountability

28. The promoter and the influencer or affiliate shall be jointly and severally liable for any false, misleading, or deceptive representation made in a promotional activity.
29. The promoter shall ensure that all affiliated marketing arrangements are governed by written agreements specifying compliance obligations under these Regulations.
30. The Commission shall impose administrative sanctions, order the withdrawal of any misleading content, or direct corrective

communication where an influencer or affiliate marketing campaign contravenes these Regulations.

Monitoring and Enforcement

31. The Commission shall monitor influencer and affiliate marketing activities across all media to ensure compliance with this Part.
32. Promoters and influencers shall retain records of all promotional content, agreements, and disclosures for a minimum of **two (2) years** and shall make such records available to the Commission upon request.

Regulated Sectors

33. No influencer, affiliate, or brand ambassador shall make, publish, or disseminate any endorsement, commentary, or promotional content relating to regulated subjects, including but not limited to medicine, healthcare, law, or financial services, except where such person possesses and can demonstrate relevant qualification, certification, or license issued by a recognized institution or competent authority.
34. A digital platform, social media network, or other online intermediary that hosts or disseminates promotional content in respect of regulated subjects shall ensure that the influencer's credentials are verified prior to publication and that such content contains clear citations, disclaimers, and transparency regarding sources of information.
35. An advertiser, promoter, or brand owner shall not engage or contract any influencer, affiliate, or brand ambassador to promote or discuss matters relating to regulated subjects unless such person holds and can produce evidence of the required qualification, certification, or license.

PART V – ARTIFICIAL INTELLIGENCE AND AUTOMATED MARKETING

36. All undertakings that deploy, operate, or utilize artificial intelligence

(AI), machine learning systems, or automated technologies for the purpose of conducting, managing, or disseminating sales promotions, marketing communications, or consumer engagement activities directed at or accessible to consumers in Nigeria shall register same with the Commission.

37. Undertaking that employs AI-generated marketing content or automated promotional systems shall be responsible and accountable for all representations, messages, and claims generated or communicated by such systems. The duty of accuracy, fairness, and transparency under these Regulations shall apply equally to all communications.

38. Promoters shall ensure that any AI-generated or automated marketing content is clearly identifiable as such and shall not mislead consumers into believing same to be natural

39. The use of AI chatbots, virtual influencers, or automated messaging systems in marketing shall be conducted in a transparent manner and must not involve manipulation, misinformation, or exploitation of consumer data or behavioural tendencies.

40. Promoters shall implement reasonable technical and organizational safeguards to ensure that automated promotional systems operate within lawful and ethical parameters and that consumers retain the right to opt out of automated or AI-driven marketing communications at any time.

41. Where an AI system or automated tool makes promotional decisions that result in misleading, discriminatory, or harmful outcomes, the promoter or operator of such system shall be liable for any breach of these Regulations and be subject to administrative sanctions, penalties, or directives issued by the Commission.

42. Promoters and digital service providers utilizing AI in marketing shall

maintain detailed records of the design, operation, data sources, and decision-making processes of AI or automated systems for a minimum period of two (2) years and shall provide such information to the Commission upon request.

43. The Commission may issue additional guidelines, standards, or directives for the ethical use of artificial intelligence and automated systems in sales promotions, including mandatory transparency statements, disclosure requirements, and consumer protection safeguards.

PART V– CROSS-BORDER AND E-COMMERCE TRANSACTIONS

44. All sales promotions, advertisements, or marketing communications directed at or accessible to consumers within the Federal Republic of Nigeria, whether conducted by entities domiciled within or outside Nigeria shall register with the Commission.

45. Any foreign or offshore undertaking that conducts or targets digital or online promotional activities accessible to Nigerian consumers shall be deemed to be carrying on business within Nigeria for the purpose of these Regulations and shall be subject to the jurisdiction of the Commission.

46. Every foreign or offshore promoter or intermediary shall ensure that any sales promotion, advertisement, or marketing activity directed at Nigerian consumers complies with the provisions of the Act, and these Regulations, including those relating to transparency, fairness, disclosure, and consumer redress.

47. Promoters engaged in cross-border digital marketing shall provide clear and accurate information on product origin, pricing, applicable taxes or duties, delivery timelines, refund policies, and dispute resolution procedures before completion of any transaction.

48. The Commission may, in collaboration with relevant domestic and international authorities, establish cooperative enforcement arrangements, including information sharing, joint investigations, and reciprocal compliance monitoring to address violations arising from cross-border promotions.

49. Where a foreign or offshore entity fails to comply with the directives of the Commission or to respond to any inquiry, summons, or enforcement action, the Commission shall take such steps as are necessary to restrict, suspend, or prohibit access to the promotional content, platform, or website within Nigeria.

50. Promoters conducting cross-border e-commerce activities targeting Nigerian consumers shall designate a local representative or contact person in Nigeria responsible for compliance with these Regulations and for the receipt of any correspondence or enforcement notice issued by the Commission.

51. Any failure to comply with the provisions of this Part shall constitute an offence and shall attract administrative penalties, sanctions, or orders as the Commission shall deem appropriate, including corrective communication, restitution, or prohibition of further marketing activities within the jurisdiction.

PART VI—PROMOTION DESIGN AND CONDUCT STANDARDS

Fair Conduct of Promotions

52. (1) All sales promotions shall be designed and conducted to ensure fairness, transparency and efficiency. A promoter shall be responsible for all aspects of the promotion and shall administer it in good faith.

(2) The promotion shall not be deceptive or misleading and shall not be advertised in a way that could create a false impression about participation and chances of winning or the nature of the prizes.

(3) Prizes shall be awarded as described in the promotional

materials or a reasonable equivalent to the original prize.

(4) No consumer shall be required to incur unreasonable expenses to claim a prize.

(5) In particular:

a. **No Purchase Necessary:** If entry into a promotion is made conditional on payment (purchase of a product, ticket, or subscription), the promoter shall provide an alternative free method of entry that is genuine and readily available, so that no consideration is required to participate and all potential entrants have a fair opportunity. The terms of any paid entry shall not increase the price of the product above its normal selling price merely to offset the cost of the prize.

    i. If entry into a promotion is made conditional on payment, (purchase of a product, ticket, or subscription), the promoter may, where appropriate, provide a reasonable alternative means of participation that is genuine and readily accessible, so that all potential entrants have a fair opportunity to participate. The terms of any paid entry shall not increase the price of the product above its normal selling price merely to offset the cost of the prize.

    ii. **Non-discrimination:** Promotions shall be open to all eligible consumers who meet the stated criteria (such as age or residency requirements); any restrictions shall be based on objective criteria (legal age for alcohol promotions) and shall be clearly stated. Prohibited classes (minors in targeted adult promotions) must be excluded.

b. **Safety and Suitability:** Promotional items, product samples, or prizes provided to consumers must be safe and suitable for their intended audience. The promoter shall comply with all product safety and consumer protection standards and include any necessary warnings or instructions.

c. **Responsible Marketing:** Promotions shall not encourage irresponsible or excessive consumption of products (such as encouraging gambling habits or alcohol misuse), nor shall they exploit vulnerable consumers.

Advertising and Marketing Standards

53.(1) All advertising, marketing and communication materials for a sales promotion must comply with the applicable advertising and marketing code and consumer protection laws.

(2) Advertisements shall be truthful, clear and unambiguous, and shall not contain any statement or implication that would mislead consumers about the promotion or its prize.

(3) The title of the promotion and any headline claims shall accurately reflect the prizes and chances offered; a more modest prize or reduced odds shall not be advertised in a way that exaggerates the promotion's value.

(4) No language or imagery shall convey fears, or suggest that participation will result in certain personal, financial or social outcomes beyond the chance of winning a prize.

Odds of Winning and Conditions

54. (1) Where the likelihood of winning can be determined or reasonably estimated, the promoter shall disclose either the odds of winning or the total number of expected winners.

(2) The promoter shall state the ratio of prizes to entries, or the approximate number of winners per region.

(3) Any material conditions or qualifications attached to winning (skill testing questions, taxes, delivery charges, or collateral requirements) shall be clearly disclosed in promotional materials and terms and conditions.

(4) Participation in a sales promotion shall not automatically enroll the participant in any unrelated product, service, subscription or future promotion unless that was explicitly consented to and clearly disclosed in the promotional terms.

Prohibited Practices

55. A promoter shall not:

a. make any false, misleading, or deceptive representation concerning goods, services, prizes, or conditions of participation;

b. fail to award prizes or benefits as advertised, or offer prizes subject to undisclosed conditions or additional consideration after results have been announced;

c. impose unfair, hidden, or discriminatory terms on consumers, including exclusion from access, differential pricing, or preferential treatment;

d. engage in bait marketing, including advertising goods or services at low prices without sufficient stock or clear disclosure of limitations;

e. engage in negative option marketing or any direct marketing unless the consumer has expressly requested or consented to receive such communication;

f. promote or advertise unsafe, substandard, restricted, or illegal goods or services, including narcotic or psychotropic substances, weapons, poisons, chemicals, or any item posing a national security threat.

PART VII—CONSUMER NOTIFICATION AND DISCLOSURES

Terms and Conditions

56.(1) A promoter shall publish the full terms and conditions of each sales promotion in a clear, accessible manner prior to commencement. The terms and conditions shall include at minimum:

a. the name and address of the promoter;

b. the nature and duration of the promotion;

c. detailed descriptions and values of all prizes;

d. the method of entry (purchase or no-purchase options);

e. eligibility criteria (age or residence requirements);

f. the date, time, method of winner selection and venue;

g. the date by which prizes will be awarded;

h. any steps winners must take to claim their prize; and

i. a statement that winners may be required to submit photo identification, tax forms or necessary documentation.

(2) Promotional materials (advertisements, online posts, point-of-sale displays) shall clearly identify that the offer is part of a promotion. Statements: “No purchase necessary” or “Official Rules apply” shall be supplemented with accessible links or directions to where the full terms can be viewed.

(3) The promoter shall include a prominent disclaimer as “Prizes as described” shall not use conditional language (“winners will be contacted in 6–8 weeks subject to terms”) in a misleading way.

(4) Any change to the terms (extending the closing date or changing a prize) shall require notice to participants and the prior consent of the Commission.

Prize Distribution Requirements

57. (1) The promoter shall specify in advance conditions on prize redemption (cash, currency and method of payment; travel expenses, taxes, fees or surcharges are handled.

(2) Promised prizes shall be in existence and under the promoter control at the time of advertising.

(3) Failure to award promised prizes (except due to force majeure) shall be treated as an unfair practice.

PART VIII—SUPERVISION OF PRIZE DRAWS AND WINNER SELECTION

Notice of Draw and Observation

58.(1) A fourteen (14) days notice shall be given to the Commission in writing of the date, time, location (physical or virtual), and procedure of the selection of winners by the promoter before any public draw or automated winner selection.

(2) The promoter shall allow the Commission (or its authorised

representative) to attend and monitor the draw or selection process.

(i) Where the draw is automated or online, the promoter shall provide the Commission in advance with information about the random selection algorithm or software to be used, including audit logs or source code.

(3) Alternatively, the Commission may require the promoter to appoint an independent auditor or lawyer to witness the draw, in which case a certificate of compliance shall be submitted to the Commission after the draw.

Conduct of Draws

59. (1) All prize draws or selections shall be conducted using a fair and verifiable method.

(2) The process shall involve at least two impartial witnesses (not related to the promoter or to entrants) who shall sign a record confirming that the draw was conducted according to the rules.

(3) The promoter shall keep a complete record of the process (e.g. video recording or authenticated log) for audit.

(4) Where the selection is by random computerized process, the promoter shall use an approved random number generator and retain all relevant data (time stamps and seed values).

(5) No entries shall be excluded from a valid draw except as expressly provided in the rules.

(6) The Commission reserves the right to verify or recount any draw or to order a re-draw if irregularities are suspected.

Winner Notification and Announcement

60. (1) The promoter shall notify each winner of a prize within seven (7) days of the draw, in writing (by email, post or phone, as appropriate).

(2) The promoter shall publicly announce winners (by newspaper or website), upon prior consent of winners to publication of personal information.

(3) The promoter shall ensure that any verification of winners (such as checking age or identity) is conducted without undue delay.

(4) Where declared winner is later found to be ineligible or cannot be reached within 30 days of the draw, the promoter may select an alternate winner by running an additional draw from the remaining eligible entries, in accordance with the original procedure and in the presence of witnesses or the Commission.

PART IX—REDEMPTION AND POST-PROMOTION OBLIGATIONS

Awarding Prizes

61. (1) Promoters shall award all prizes to winners within 30 days of verification of the winners, or within the timeframe stated in the terms and conditions, whichever is sooner.

(2) Any prize that is a voucher or gift card, shall have a validity period not shorter than six months and shall be transferable only in accordance with its own terms.

(3) If a prize cannot be provided exactly as advertised, the promoter shall provide a reasonable equivalent prize or cash value with the prior approval of the Commission and shall notify the winner.

(4) Winners are responsible for any personal taxes or duties on cash prizes, but the promoter shall inform winners of this obligation at time of notification.

Unclaimed Prizes and Alternate Winners

59.(1) Where a prize winner fails to claim the prize within 30 days after being notified, the prize shall be forfeited to the promoter:

(i) the promoter shall promptly inform the Commission of any forfeiture and shall hold the unclaimed prize for an additional 60 days.

(2) Where unclaimed, the promoter shall dispose of the prize in a manner consistent with good faith and consumer interest (donating it to a charitable cause) and notify the Commission in writing of the disposition.

(3) In case of prize forfeiture, the promoter shall not retain the value of the unclaimed prize; any funds reserved for it shall be used to ensure compliance with these Regulations or as otherwise ordered by the Commission.

Post-Promotion Report

60.(1) Within 30 days after the conclusion of a sales promotion (including any extensions), the promoter shall submit to the Commission a final report in the prescribed form (First Schedule). The report shall detail:

a. the number of entries received,

b. the names and contact information of winners,

c. the prizes awarded, and

d. a financial accounting of any entry fees or contributions collected and spent.

(2). The report referred to in sub-regulation (1) shall be certified by a qualified accountant as true and correct.

(3) Supporting documents (copies of winner notices, attestation of prize delivery, and advertisement copies) shall be attached to the report.

(4). The promoter shall retain all records of the promotion (entries, audits, accounts, correspondence, etc.) for at least two years after completion of the promotion and shall make them available to the Commission on request.

PART X—ENFORCEMENT, SANCTIONS AND PENALTIES

Contraventions and Offences

61.(1) Any undertaking who contravenes or fails to comply with any provision of these Regulations or any condition of a Sales Promotion Registration Certificate shall be liable to sanction and may include penalties or revocation of Certificate.

(2) In the event of a penalty, where a defaulting undertaking is —

a. a natural person, is liable to an administrative penalty not exceeding NGN50,000,000.00.
b. a body corporate, shall be liable to an administrative penalty not exceeding NGN100,000,000.00 (One Hundred Million Naira) or 1% of its turnover in the previous year, whichever is greater.
c. each director of an undertaking referred to in Regulations 61.2(b) is liable to be proceeded against as specified under Regulations 61.2(a). Such sanction may include disqualification as a director for a period not exceeding five (5) years.

Penalties on Promoters

62.(1) In addition to any other penalty, where a promoter fails to award a prize as promised or otherwise breaches a promoted terms and conditions, the Commission shall require the promoter to award the prize immediately and may levy a penalty not exceeding ten million naira (NGN10,000,000).

(2) Where a promoter makes a false statement in any application or undertaking under these Regulations, the promoter shall be liable to an administrative penalty not exceeding ten million naira (NGN10,000,000.00).

(3) The Commission shall publicize any enforcement action or penalty imposed for non-compliance, to deter unfair promotional practices.

PART XI—APPEALS

Right of Appeal

63. (1) A person aggrieved by a decision of the Commission under these Regulations shall within 28 days of the decision, appeal to the Competition and Consumer Protection Tribunal.

(2) The appeal shall not stay the enforcement of the Commission's decision unless ordered by the Tribunal or Court.

PART XII—INTER-AGENCY COORDINATION

Cooperation with Other Regulators

64.(1) The Commission may collaborate and/or coordinate with other relevant regulatory bodies to ensure effective oversight of sales promotions. The Commission and the National Lottery Regulatory Commission may share information and cooperate whenever a sales promotion has elements of a lottery.

(2) The Commission may also collaborate with advertising regulators (APCON), and other sector-specific regulators to align standards and address cross-cutting issues.

Notification to Other Regulators

65.Nothing in these Regulations shall be construed as preempting Promoters from notifying other regulators as required by law. The Commission may require proof of such notifications as a condition of registration.

PART XIII—CONSUMER PROTECTION AND REDRESS MECHANISMS

Complaints Handling

66.(1) The promoter shall establish and maintain a mechanism for participants to submit complaints or inquiries about the promotion (WhatsApp, or email) and shall acknowledge and resolve complaints promptly.

(2) Any participant who believes a promotion has violated the Act or these Regulations may lodge a complaint with the Commission.

(3) Upon receipt of a complaint under these Regulations, the Commission shall acknowledge receipt of same within **five (5) working days**.

(4) The Commission shall commence preliminary review or investigation of the complaint within ten (10) working days of

acknowledgment and shall conclude the investigation and communicate its findings or decision to the complainant and the promoter within thirty (30) working days thereafter, except extended for just cause.

(5) The Commission may, upon conclusion of preliminary review or investigation, issue appropriate directives, administrative sanctions, or remedial orders as it deems fit under these Regulations.

(3) The Commission shall investigate consumer complaints and may require the promoter to take corrective action (such as paying a refund or awarding a deferred prize).

Refund of Entry Fees

67. Where a promotion requires a purchase or entry fee and the Commission determines that the promotion was conducted contrary to these Regulations or the rules of the promotion, the Commission may order the promoter to refund the entry fee to any affected participants. This remedy is in addition to any other penalty or sanction, as may be imposed by the Commission.

PART XIV—CONSUMER EDUCATION AND PUBLIC AWARENESS

Awareness Campaigns

68. The Commission shall, within its mandate, conduct or facilitate public education campaigns to inform consumers about their rights and responsibilities regarding promotional activities, including how to identify legitimate promotions and avoid scams.

69. The Commission shall, on a quarterly basis, publish and maintain a public record of all sales promotions registered and approved under these Regulations, indicating the name of the promoter, title of the promotion, period or duration, and registration number issued by the Commission, and shall make such record accessible to the public through its official website, social media platforms, or any other medium as the Commission may determine.

Terms Disclosure to Consumers

70. Promoters shall provide clear notice in all promotional communications directing consumers to the full terms and conditions.

PART XV—DATA PROTECTION AND PRIVACY IN PROMOTIONS

Personal Data

71. (1) Promoters shall collect, use and store personal data of participants in compliance with the Nigeria Data Protection Act, 2023 and other relevant enactments. Personal data shall be processed only for the purpose of administering the promotion, awarding prizes, or as required by law, and shall not be sold or shared with third parties without the express consent of the data subjects.

(2) The promoter shall implement reasonable safe and security measures to protect participant data from unauthorized access. Any third party engaged to process entries or deliver prizes must be bound by confidentiality and data protection obligations.

Marketing Communications

72. (1) Promoters shall not automatically add participants to unrelated marketing mailing lists without explicit opt-in consent.

(2) Any communication sent after the conclusion of the promotion shall relate only to the promotion or prize fulfillment, unless the consumer has separately agreed to receive further marketing.

PART XVI—REPORTING AND RECORDKEEPING REQUIREMENTS

Record-keeping

73. The promoter shall maintain complete and accurate records of all aspects of each sales promotion for a minimum of two (2) years after the promotion ends. These records include all entries (electronic or paper), registration applications, advertising materials, financial records of entry fees and prize costs, prize distribution receipts, winner lists, and any complaints received.

Submission of Information to Commission

74. Upon request by the Commission, the promoter shall provide copies of all records and documents related to a registered promotion.

Monitoring and Audit

75.(1) The Commission shall require periodic or post-promotion audits of a sales promotion, to be conducted by an independent auditor at the promoter's expense.

(2) The promoter shall fully cooperate with any audit or investigation, providing access to all records and personnel as needed.

PART XVII—MISCELLANEOUS AND SCHEDULES

Other Laws and Regulations

76.(1) These Regulations shall be read in conjunction with the Act, any Advertising and Marketing Code, and other relevant enactments.

(2) In the event of any conflict, the Act and these Regulations shall prevail in their application to sales promotions.

(Revocation and savings)

77.(1) The Consumer Protection (Sales Promotions) Regulations, 2005 is hereby amended.

(2) Any sales promotion registered under the Regulations revoked by sub-regulations (1) shall continue to have effect as if registered under these Regulations, until its stated expiry date or three months after the commencement of these Regulations whichever comes first.

Interpretation

78. In these Regulations, unless the context otherwise requires:

"Act" means the Federal Competition and Consumer Protection Act, 2018 (No. 1 of 2019);

"Advertising and marketing code" means the Nigeria Code of Advertising Practice or any code of advertising practice issued by the Advertising Regulatory Council of Nigeria.

“Affiliate” means any person engaged in promoting a product or service in exchange for commission, referral benefit, or other form of remuneration.

“Award” includes prize draws and the selection of winners by lot, ballot, or any other chance mechanism;
“Commission” means the Federal Competition and Consumer Protection Commission established under the Act;

“Draw” means an act of selecting participants randomly to determine a winner.

“Influencer” means any person that promotes or endorses products or services to an consumer through any communication channel, including social media or online platforms, for monetary or non-monetary benefit.

“Lottery” means a game or scheme of chance which is required to be licensed under the National Lottery Act, 2005 or any other enactment, including any promotional lottery;
partnership, association or other entity) that organizes, conducts or sponsors a sales promotion;
“Participant” means a person who enters or takes part in a sales promotion;

“Person” includes any natural or legal person, whether incorporated or not.

“Prize” means any money, goods, service, voucher, discount or other benefit awarded in a sales promotion;

“Promoter” means any person or undertaking (whether an individual, company,

“Promotional activities” means any act, campaign, advertisement, communication, or engagement undertaken by a promoter or its agent to induce, encourage, or reward consumer participation in connection with the sale, purchase, or advertisement of goods or services.

“Promotional materials” means any advertisement, notice, digital content, publication, or communication, whether in print, broadcast, or electronic form, issued or authorized by a promoter for the purpose of publicizing or conducting a sales promotion

“Sales Promotion” means any promotional scheme or campaign by which prizes, gifts, refunds, rebates or other incentives (prize draws, competitions, lotteries, gift-with-purchase, instant-win promotions, or premium offers) are offered to consumers in connection with the

patronage of goods or services or with participating in any activity;

"Undertaking" includes any person involved in the production of, or the trade in, goods, or the provision of services.

"Unreasonable expenses" means any cost or financial obligation imposed on a participant for the purpose of entering, participating in, or claiming a prize in a sales promotion, which is excessive, disproportionate, or not reasonably related to the conduct or administration of the promotion.

(Short title and commencement)

79. These Regulations shall be cited as the *Federal Competition and Consumer Protection Commission Sales Promotion Regulations, 2026.*

80. The provisions of the Regulations shall come into force on the date of publication in the Federal Gazette.

MADE at Abuja this ___ day of _____, 2026

TUNJI BELLO
Executive Vice-Chairman
Federal Competition and Consumer Protection Commission

SCHEDULE 1

FORM FCCPC A

FEDERAL COMPETITION AND CONSUMER PROTECTION COMMISSION

SALES PROMOTION REGISTRATION FORM

A. Complete this form in full and attach all relevant documents required where applicable.

*I/We hereby apply for the registration of a sales promotion, ,the particulars of which are provided below:

1. Name of the Promoter/Applicant:

_____

(a) If an incorporated company, attach a Certified True Copy (CTC) of incorporation certificate and particulars of Directors with the Corporate Affairs Commission (CAC).

Submitted /not submitted

(b) If a firm or partnership, attach a CTC of Registration Documents by the Corporate Affairs Commission.

Submitted/not submitted

2. Contact information

Telephone: _____ Fax: _____ Mobile: _____

Email: _____

3. Name of Agent (where applicable):

_____

4. Contact information of Agent
   Telephone: _____ Fax: _____ Mobile: _____

   Email: _____

5. Name of Promotion:

   _____

6. Detailed description of Promotion:

   _____

7. *S*ell-in time (Period of the promotion):

   _____

*Sell-in-time of a Promotion must not exceed one year.

8. Location(s) of the Promotion, City, State, Nationwide etc.
_____
_____
_____

9. Complete addresses of all redemption centres (where applicable)
_____
_____
_____
_____

10. Particulars of the Promotion

(a) Total Value of Prizes to be won
_____

(b) Specify in details Prizes to be won (cash or products):

_____

(c) Detailed invoice of the gift items including the quantity of each item and total costs.

*Invoice of all prizes indicating number and prices. *Submitted/not submitted*

*If '*not submitted*' when will it be submitted?

Date _____

(d) Have all the prizes been purchased? *Yes/No*, If 'Yes' Provide evidence of payment.

Submitted/not submitted

(e) Available for inspection? Yes/No

(f) If 'No' when will they be available for inspection? _____

(g) State the location and detailed address of where the gifts items are kept.

_____
_____

11. Details of how consumers will participate in the promotion._____
_____
_____
_____
_____

12. What is the projected number of entries? _____

13. What is the ratio of winning a prize vis a vis entries made?_____

14. Is the ratio different depending on prizes?_____

15. Provide details of winning odds for each price category.

Submitted/not submitted

16. Any Draws? Y*es/No*

17. If 'Yes', state how many draws? _____

*You are required to send to the Commission the details of the Draws, no later than 14 days prior to the scheduled draw.

18. Nature/type of promotion?

Yes/ No

_____

19. If yes, state the sample questions for intended participants

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20. Is the promoter's sector regulator's approval required? Yes/No

21. Has the promoter's sector regulator's approval been obtained? Yes/No

22. If 'Yes' provide evidence.

Submitted/not submitted/not applicable.

23. Is application with the regulator for running the promotion currently pending? Yes/No

24. List other Regulatory approval obtained or pending:

_____

25. A copy of advertorials for electronic, print, social and other media.
Submitted/not submitted/not applicable.

26. Samples of any other promotional material including fliers, footage, or images (where sample is a recording, provide a flash drive of same in easily retrievable format) *Submitted/not submitted/not applicable.*

27. Closing date for entries (if applicable) _____

28. State any limitations on the availability of promotional packs in relation to the stated closing date
_____

29. State eligible age for participation and any exclusion based on professional relationships or otherwise.
_____

30. Is there any restriction based on location?

_____

31. Are multiple entries allowed? Yes/No

32. If yes how many entries? _____

33. How will the winners be selected? Provide Details
_____
_____

34. How will the results be announced?
_____

35. How will winners be contacted?
_____

36. Provide criteria for judging entries for qualification:
_____

37. State clearly whether winners will be used in post-event publicity
_____

38. Details of any other factor likely to influence consumers' decisions or understanding of the promotion
_____

Name(S) of Contact Person(s) for the Promotion

_____

Mobile Phone Number(s) & Email(s) of Contact Person(s)

_____

I_____of_____

(Applicant) hereby affirm that the information given above is complete and true.

Date: _____

Signature of applicant: _____

Name: _____

Designation: _____

Mobile phone number: _____

SCHEDULE 2

FORM FCCPC B

FEDERAL COMPETITION AND CONSUMER PROTECTION COMMISSION

FINAL REPORT OF SALES PROMOTION

Sales Promotion registration and monitoring exercise conducted pursuant to the Federal Competition and Consumer Protection Act, 2018.

- *THIS FORM MUST BE FILLED and submitted within 21(days) of completion of the promotion.*
- *You are required to submit this form alongside the LIST OF YOUR WINNERS AND THEIR CONTACT DETAILS.*

1. Name of the Promoter: _____
2. Name of the company that registered the promotion (if different from above): _____
3. Name of the promotion: _____
4. Promotion Approval Number: _____
5. Number of draws conducted: _____
6. Number draws yet to be conducted: _____
7. Frequency of draws held: _____
    a. Weekly
    b. Monthly
    c. Quarterly
    d. End of Promotion Period
8. How were draws conducted?

    Electronically / Manually
9. Area of coverage for draws

i. Selected Cities (e.g. Abuja): _____

ii. Political Zones (e.g. South/South): _____

iii. Nationwide: _____

10. Date draws were held:

i. ----------

ii. ----------

iii. ----------

11. Date of Closure of the promotion: _____

12. Was there any need for extension of the promo period (if yes): _____

Actual Start date: _____

Actual completion date: _____

Number of winners: _____

13. Categories of winners: _____

i. _____

ii. _____

iii. _____

iv. _____

v. _____

vi. _____

vii. _____

14. Have all the prizes been redeemed? Yes/No: _____

15. If No state reasons: _____

16. Number of winners who have redeemed their prizes: _____

17. Number of winners yet to redeem their prizes: _____

Signature of Applicant: _____

Name: _____

Designation: _____

Mobile Number: _____

Date: _____